



DEPARTMENT OF THE NAVY  
PROGRAM EXECUTIVE OFFICE SHIPS  
1333 ISAAC HULL AVE SE  
WASHINGTON NAVY YARD, DC 20376-0001

IN REPLY REFER TO:  
J&A No. CR-26005  
Code: 0223

JUSTIFICATION AND APPROVAL  
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION

1. Contracting Activity.

The Naval Sea Systems Command (NAVSEA) Naval Surface Warfare Center, Crane Division (NSWC-CR), Services Contracting Division Code 022.

2. Description of the Action Being Approved.

Establishment of a "Bridge Contract" using Other Than Full and Open Competition to Herren Associates, Incorporated (Herren), 1220 12th St SE, Suite 310, Washington, DC 20003, for Professional and Technical Support Services to Program Executive Office, Ships (PEO Ships). The Bridge Contract will be a Cost-Plus-Fixed-Fee (CPFF) contract with an estimated value of [REDACTED] and the Period of Performance will include a Base Period of 01 April 2026 through 30 June 2027.

3. Description of Supplies/Services.

The incumbent task order provides expertise in the areas of Integrated Logistics Support (ILS), Program Support and Management, Acquisition and Contract Management, Business and Financial Management, and Integrated Performance Analysis to assist the large surface combatant program in accomplishing its mission and objectives in design and construction of large surface combatants. The subject sole source procurement will provide the continuation of the same support services to the large surface combatant program.

Based upon the projected requirements and budget forecasts, the Government plans to incrementally fund the contract as shown below.

The Period of Performance for the Bridge Contract is 01 April 2026 through 30 June 2027.

Estimated Dollar Value

| Type Funds   | Fiscal Year (FY)<br>2026-2027 Total |
|--------------|-------------------------------------|
| [REDACTED]   | [REDACTED]                          |
| <b>Total</b> | [REDACTED]                          |

The program utilized historical data and projected minimum requirements to estimate and provide minimum effort required. The minimum requirements have been verified by the certifying technical and requirements personnel.

CUI

10 U.S.C. 3204(a)(1), Only one responsible source and no other supplies or services will satisfy agency requirements.

On 15 October 2024, Herren filed a protest (B-423101.1) at the Government Accountability Office (GAO) objecting to NAVSEA's proposed plan to mitigate an alleged disclosure of proprietary information contained within draft Solicitation No. N0016424R3013 (the Solicitation) to provide Professional and Technical Support Services to Program Executive Office, Ships to support the large surface combatant program. [REDACTED]

only Herren has the capability to accomplish the large surface combatant program's mission requirements within the required schedule until the award of the competitive follow-on Task Order, which, as stated above, will not be solicited until 01 June 2026 in accordance with [REDACTED]. Therefore, with the Solicitation's release delayed until 01 June 2026, Herren is the only responsible source available to provide Professional and Technical Support Services until the competitive follow-on award.

As the current incumbent, Herren can provide uninterrupted services. If this Bridge Contract action is not executed to ensure continuation of Professional and Technical Support Services a lapse in services will occur, resulting in unacceptable delays in satisfying current and future Navy requirements that will negatively impact the large surface combatant program's mission of designing, building, and delivering the Navy's large surface combatants to the Warfighter. These services are integral to the successful execution of the large surface combatant program. Herren possesses unique subject matter expertise, specifically in the development and management of program schedule, a function central to meeting mission requirements. Interruption of Herren's support will result in substantial delays to meeting mission requirements to deliver large surface combatants. Without a Bridge Contract action to maintain continuity of these services, the large surface combatant program will experience a critical loss of essential subject matter expertise. Re-establishing these capabilities without Herren's uninterrupted services will necessitate the expenditure of significant additional time and resources, most notably due to transfer of existing program knowledge and identification of alternative personnel. The delays resulting from the loss of these support services will severely impact the large surface combatant program's ability to deliver and subsequently integrate large surface combatants into the naval fleet. These delays will negatively affect the Navy's wartime readiness and potentially impact its ability to meet future operational requirements. The implications include a reduction in overall force structure capability and a potential degradation of the Navy's capacity to fulfill its national defense mission.

Therefore, based on the aforementioned information, the adverse schedule impacts justify the use of other than full and open competition.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

In accordance with FAR 5.2, the proposed Bridge Contract was synopsisized via SAM.gov during the period of 05 December 2025 to 20 December 2025. The only response received did not indicate an interest in competing for this requirement. No additional market research will be conducted because it is not practicable, for the reasons discussed in Paragraph 5 above, for any company other than Herren to provide the required services during the bridge period. A blanket waiver was issued by NAVSEA Director of Contracts (SEA02) on 15 September 2015 waiving the requirement found in DFARS PGI 206.302-1(d) to issue an RFI or Sources Sought Notice (SSN) when awarding a bridge contract on the basis found in FAR 6.302-1. The follow-on task order will be solicited competitively on 01 June 2026.

7. Determination of Fair and Reasonable Cost.

The Contracting Officer has determined the anticipated costs to the Government for the supplies/services covered by the J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition.

The requested Bridge Contract action is part of the [REDACTED] Rationale Justifying Use of Cited Statutory Authority, above and is not a result of a lack of competition or perceived potential lack of competition due to overly restrictive requirements.

There are no known barriers to competition as evidenced by the fact that the previously issued follow-on solicitation issued under SeaPort-e had resulted in effective competition.





## CERTIFICATIONS AND APPROVAL

## TECHNICAL/REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief.

## TECHNICAL COGNIZANCE:

[REDACTED]

## REQUIREMENTS COGNIZANCE:

[REDACTED]

## LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

[REDACTED]

## CONTRACTING OFFICER CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]

## APPROVAL

Upon the basis of the above justification, I hereby approve, as the Contracting Officer, the solicitation of the proposed procurement described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 3204(a)(1).

MAHONEY.MICHAEL.TERRENCE [REDACTED]

Digitally signed by MAHONEY.MICHAEL.TERRENCE [REDACTED]  
Date: 2026.03.09 08:54:43 -04'00'

Michael T. Mahoney, Contracting Officer, 0223

Date